



Notification Waiver Determination

Aurizon – transactions related to the relocation of a rail corridor at Moranbah North

Acquisition	Aurizon Network Pty Ltd (Aurizon) applied for a notification waiver in respect of various proposed transactions to facilitate the relocation of a section of the Goonyella Mainline rail network between Wotonga and Moranbah North Junction, and develop a section of new rail infrastructure on adjacent land (Rail Relocation Project) within the area of the Moranbah North and Grosvenor coal mining complex in Queensland (MG Complex), as described in the transaction documents provided as part of the application (the Acquisition). The Acquisition comprises a number of transaction steps required to facilitate the Rail Relocation Project, including various acquisitions of assets involving Aurizon, Anglo, the other participants in the Moranbah North JV, Queensland Treasury Holdings Pty Ltd, and the Department of Transport and Main Roads of Queensland.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	20 August 2026

Parties to the Acquisition	The MG Complex is owned by the Moranbah North unincorporated joint venture (Moranbah North JV), which is majority owned by Anglo American plc (Anglo) via its subsidiaries. The Acquisition comprises a number of transaction steps required to facilitate the Rail Relocation Project, including various acquisitions of assets involving Aurizon, Anglo, the other participants in the Moranbah North JV, Queensland Treasury Holdings Pty Ltd, and the Department of Transport and Main Roads of Queensland. Aurizon is an Australian rail freight operator providing coal haulage services and bulk rail haulage services in Queensland, New South Wales, and Western Australia. It also provides rail network services via the existing rail corridor. Anglo is a global producer and supplier of a range of commodities, including metallurgical coal, copper, diamonds, nickel, iron ore, and manganese. Anglo's steelmaking coal business comprises coal mines in the Bowen Basin of Central Queensland that principally produce metallurgical coal for export from Australia. The existing rail corridor is approximately 8.5km in length and passes over a planned longwall mining area at the MG Complex. To enable the Moranbah North JV to extract the coal resource underneath the existing rail corridor and mitigate potential adverse
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	impacts on rail infrastructure within the existing rail corridor, a new 10.8km rail corridor is proposed to be established on adjacent land. Once established, the relocated rail corridor will be operated by Aurizon for the purpose of transporting coal, including coal produced at the MG Complex.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application, and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information currently before it, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. The Acquisition involves the relocation of an existing rail corridor from one area within the MG Complex to another, and would not result in any horizontal consolidation or removal of a competitor. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's guidance on notification waivers and merger assessment guidelines.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act